

24NWCV01784 24NWCV01784

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KORRINE GILYANNA, ET AL. v. CHP HOSPITAL MANAGEMENT, LLC,
ET AL.

CASE NO.: 24NWCV01784

HEARING: 09/15/2026 @

9:30 AM

#10

TENTATIVE ORDER

Plaintiff Korinne

Gilyanna's motion for

reconsideration of this Court's Order on April 20, 2026 is DENIED.

Moving party to give notice.

Plaintiff Korinne Gilyanna (Plaintiff) moves for

reconsideration of this Court's Order on April 20, 2026 (4/20/26 Order).

Background

On June 5, 2024, Plaintiffs Korinne Gilyanna, individually
and as successor in interest to the Estate of Steven Esner, and Stuart Esner
filed this medical malpractice action against CHP Hospital Management, LLC dba
Coast Plaza Hospital (Defendant), Coast Plaza Doctors Hospital, David Tao, M.D.
(Dr. Tao), Aida Salatinjants, M.D. (Dr. Salatinjants), Patricia Luu, NP., and

Does 1 to 100 (collectively, Defendants). On December 17, 2024, Plaintiffs filed an Amendment to Complaint replacing Doe 11 with Defendant Harris Musafer, M.D. (Dr. Musafer). The complaint alleges that Decedent Steven Esner (Decedent) was a patient of Defendants and that each defendant failed to evaluate and/or treat Decedent resulting in his death on June 18, 2023. The complaint asserts a single cause of action for medical malpractice.

On December 19, 2025, the Court granted Plaintiff's motion to compel Defendant to produce (1) Defendant's current Director of Medical Staff; (2) Defendant's current secretary that prepares minutes for the Defendant's Board of Director; and (3) the person most knowledgeable concerning Patricia Luu, NP's application for privileges for deposition. (12/19/25 Order.)

On January 9, 2026, the Court granted Plaintiff's motion to produce (1) Victor Carrasco [second session]; (2) Mark David, RN; (3) The person most knowledgeable concerning the identity of each infectious disease physician who was on staff at YOUR hospital in June 2023; (4) Its officer, director, and/or agent who was the nursing supervisor for Haeryun Jeong, R.N. on June 17, 2023; (5) "its officer, director, and/or agent Jocelyn whose name appears on Exhibit 1 attached"; and (6) Vincent Green, M.D for deposition. (1/9/26 Order.)

On April 20, 2026, the Court granted in part Plaintiff's Motion to Enforce Court Orders Requiring Defendant to Produce Deponents for Deposition. (4/20/26 Order.)

On July 21, 2026, the Court granted in part, denied in part, and found moot in part Plaintiff's Motion to Compel Deposition of Defendant. The motion was granted as to Defendant's PMK for the Identity of Board of Directors as of June 1, 2023 and Identity of Secretaries Who Prepared Board Minutes in 2023, among others. (7/1/26 Order.)

Legal Standard

"When an application for an order has been made to a judge, or to a court, and refused in whole or in part...any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the

application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Code Civ. Proc., § 1008, subd. (a).)

A motion for reconsideration under Section 1008 requires that the moving party present new or different facts that were not previously considered by the Court. (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212-13.) However, the burden under Section 1008 "is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial." (Id. at p. 212; Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830, 833 [finding that Section 1008 imposes the special requirement of having to not only show new or different facts, circumstances, or law, but also to "show diligence with a satisfactory explanation for not presenting the new or different information earlier..."].) A disagreement with a ruling is not a new fact that will support the granting of a motion for reconsideration. (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1500.) "[A] court acts in excess of jurisdiction when it grants a motion to reconsider that is not based on 'new or different facts, circumstances, or law.'" (Ibid.)

Discussion

Plaintiff moves for reconsideration of the Court's 4/20/26 Order or, alternatively, for an order enforcing the 12/19/25 Order requiring Defendant to produce for deposition its current secretary who prepared minutes for its Board of Directors. This motion is unopposed.

The 4/20/26 Order sought to enforce the 12/19/25 Order. (4/20/26 Order.) The Court denied the motion as it related to enforcing the 12/19/25 Order regarding "the deposition of the current secretary for the Board of Directors" based on Defendant's representation that "the deposition of the current secretary for the Board of Directors, Fernando Vasquez has been completed. (Irwin Decl., ¶¶ 7-8.)" (4/20/26 Order.) The Court notes that Plaintiff, at the time, repeated the fact that the deposition had been completed in her reply to that motion. (See Reply to Mot., 4/9/26.)

Plaintiff moves for reconsideration of the 4/20/26 Order to the extent that the Court accepted Defendant's representation that the deposition had been completed.

Code of Civil Procedure section 1008, subdivision (a) not only requires "new or different facts, circumstances, or law," but also that the moving party "must provide a satisfactory explanation for the failure to produce the evidence at an earlier time." (New York Times Co., *supra*, 135 Cal.App.4th at p. 212.)

Here, Plaintiff argues that the purported new fact, that Defendant allegedly misled the Court that the deposition completed, became apparent only after reading the deposition transcript after the April 20, 2026 hearing. However, Plaintiff does not explain why she did not raise this fact during that hearing. Plaintiff supplies the deposition transcript showing that Plaintiff's counsel deposed Fernando Vasquez on April 1, 2026. (Howard Decl., Exh. 3.) The deposition transcript shows that Fernando Vasquez represented that he does not prepare the minutes for the board meetings. (Howard Decl., Exh. 3.) Thus, it is reasonable to infer that Plaintiff's counsel was made aware of the alleged fact that Fernando Vasquez was not the "current secretary who prepared minutes for its Board of Directors" prior to Plaintiff's deadline to reply to the opposition and prior to the April 20, 2026 hearing.

Plaintiff does not provide a "satisfactory explanation for the failure to produce the evidence" at the time this motion was heard. (New York Times Co., *supra*, 135 Cal.App.4th at p. 212.) "The burden under section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial." (*Id.*, at p. 212-13.)

Plaintiff does not explain why Plaintiff's counsel, whom the cited documents show conducted the deposition, could not have recalled that Fernando Vasquez was not the proper deponent at the time of Plaintiff's reply or the April 20, 2026 hearing. Further, Plaintiff does not explain why Plaintiff represented the opposite—that the deposition was completed—during the April 20, 2026 hearing. Plaintiff also does not show why it could not have moved to continue the April 20, 2026 hearing to wait until receipt of the transcript before representing to the

Court that the deposition was completed. Based on the foregoing, the Court finds that Plaintiff does not provide a sufficient explanation for not raising this purported misrepresentation at the April 20, 2026 hearing when the relevant facts were directly communicated to Plaintiff's counsel prior to that hearing.

Accordingly, Plaintiff's motion for reconsideration is DENIED.

Plaintiff's alternative request, to enforce the 12/19/25 Order, seeks duplicative relief as the instant motion for reconsideration and is therefore also denied.

Plaintiff moves to compel the following employees and agents of Defendant to appear for deposition:

PMK / Entity Depositions

1. PMK re: Identity of Board of Directors as of June 1, 2023;
2. PMK re: Driver's License Number
– Patrick Rafferty;
3. PMK re: Driver's License Number
– Monica Canlas (former employee);
4. PMK re: W-2 Address – Monica Canlas;
5. PMK re: Identity of Secretaries
Who Prepared Board Minutes (2023);
6. PMK re: Nurse Overall
Responsibility for ICU (current);
7. PMK re: Nurse Overall
Responsibility for ICU on June 17, 2023;
8. PMK re: Efforts to Have Patricia

Luu Sign Her Orders

Individual / Employee

Depositions

9. Valentine Duran – Current Chief

Nursing Officer;

10. Director of Blood Bank (June

2023);

11. Clinical Laboratory Scientist

who processed hemoglobin result of 3.4;

12. Employee who processed the

subject computerized provider order entry / blood order reflected in Exhibit 1

to the notice;

13. Charge Nurse in the ICU on June

17, 2023, during the shift from 7:00 a.m. to 7:00 p.m.; and

Board / Leadership Deposition

14. Jennifer Perez – Board Member.

Based on the joint separate statement, the deposition of Charge

Nurse in the ICU on June 17, 2023, during the shift from 7:00 a.m. to 7:00 p.m is

either withdrawn or scheduled. The motion is moot as to this deposition.

As to Plaintiff's motion to compel a deposition of

Defendant's PMK for the Identity of Board of Directors as of June 1, 2023; Identity

of Secretaries Who Prepared Board Minutes in 2023; Nurse with Current Overall

Responsibility for the ICU; Nurse with Overall Responsibility for the ICU on

June 17, 2023; Driver's License Number – Patrick Rafferty; Driver's License

Number – Monica Canlas (former employee); and W-2 Address – Monica Canlas, the

Court finds Defendant's arguments that these requests are overburdensome and more

efficiently raised in written discovery well-taken. However, absent a

protective order or valid objections to the deposition notice, the Court cannot

grant relief as Plaintiff has a right to compel these depositions. (Code Civ.

Proc., § 2025.010 ["Any party may obtain discovery within the scope delimited

by Chapter 2...by taking in California the oral deposition of any person, including any party to the action.”].)

The Court notes that all that is required under Code of Civil Procedure section 2025.230 is that Plaintiff provides matters for examination to guide Defendant in selecting a PMK for deposition. Code of Civil Procedure section 2025.230 provides, in relevant part, that “[i]f the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent.” The Court does not consider objections at this time.

As to Plaintiff’s motion to compel depositions of Director of Blood Bank (June 2023); Employee who processed the subject computerized provider order entry / blood order reflected in Exhibit 1 to the notice; Jennifer Perez – Board Member, and Valentine Duran – Current Chief Nursing Officer there are no protective orders. Therefore, the Court finds an order compelling these depositions warranted.

As to Plaintiff’s motion to compel depositions Clinical Laboratory Scientist who processed hemoglobin result of 3.4, PMK re Efforts of CPH to Have Patricia Luu Sign Her Orders re Decedent, and Employee Who Processed Order for 2 Units of PRBC on June 17, 2023, the Court agrees with Defendant that an order compelling such depositions is not warranted. Defendant represents to the Court, and Defendant represented to Plaintiff while meeting and conferring, that it is not aware of individuals responsive to this request. Therefore, there are no depositions to compel.

As to document requests accompanying the notices of deposition, the issue is not properly before the Court, and the Court does not rule on them. Plaintiff does not submit a proper separate statement in compliance with California Rules of Court, rule 3.1345(a)(5) [separate statement required “[t]o compel...the production of documents or tangible things at a deposition.”].) This would require producing the text of each production request and arguments regarding each request. (Cal. Rules of Court, rule 3.1345(c).) No such separate statement was provided for any of the fourteen deposition requests.

Accordingly, this motion is GRANTED IN PART, DENIED IN PART, and MOOT IN PART.

This motion is GRANTED as to Plaintiff's motion to compel a deposition of Defendant's PMK for the Identity of Board of Directors as of June 1, 2023; Identity of Secretaries Who Prepared Board Minutes in 2023; Nurse with Current Overall Responsibility for the ICU; Nurse with Overall Responsibility for the ICU on June 17, 2023; Driver's License Number – Patrick Rafferty; Driver's License Number – Monica Canlas (former employee); and W-2 Address – Monica Canlas; Director of Blood Bank (June 2023); Employee who processed the subject computerized provider order entry / blood order reflected in Exhibit 1 to the notice; Jennifer Perez – Board Member; and Valentine Duran – Current Chief Nursing Officer.

Defendant is ORDERED to produce a PMK and the noticed individuals for deposition within 60 days of this Order without document production. This date may be extended pursuant to agreement between the parties.

This motion is DENIED as to the depositions of Clinical Laboratory Scientist who processed hemoglobin result of 3.4, PMK re Efforts of CPH to Have Patricia Luu Sign Her Orders re Decedent, and Employee Who Processed Order for 2 Units of PRBC on June 17, 2023.

This motion is MOOT as to Charge Nurse in the ICU on June 17, 2023.

Sanctions

Plaintiff moves for monetary sanctions for misuse of the discovery process and under Code of Civil Procedure section 2025.450.

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction... in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §2025.450, subd. (g)(1).)

The Court declines to award monetary sanctions. Plaintiff failed to meet and confer in good faith prior to bringing this motion. Moreover, based on the Court's ruling here and the arguments made by the opposition, the Court finds Defendant acted with substantial justification.

Plaintiff's Motion for a Protective Order

Plaintiff moves for a protective order concerning Defendant Lindsey Chan's request for admissions, set one.

Since Defendant Lindsey Chan is no longer a party in this litigation, this motion is taken OFF-CALENDAR.